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BLACKTOWN DEVELOPMENT CONTROL PLAN

2015

Part E

Development in the Industrial Areas

Blacktown City Council

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1 Introduction

1.1 Land to which this Part applies

This Part of Blacktown Development Control Plan (DCP) 2015 applies to all land within the Blacktown local government area that is zoned to allow industrial development under Blacktown Local Environmental Plan (LEP) 2015 (Refer to Figure 1.1).

1.2 Objectives

The objectives of this Part of the DCP are as follows:

- **Objectives**

  (a) To provide detailed design guidelines for development within the industrial, B5 and B7 zones

  (b) To provide guidance on preparing and lodging development applications (DAs) for development within the industrial, B5 and B7 zones

  (c) To ensure that all development within Blacktown's industrial, B5 and B7 zones is consistent with the relevant zone objectives outlined in Blacktown LEP 2015.

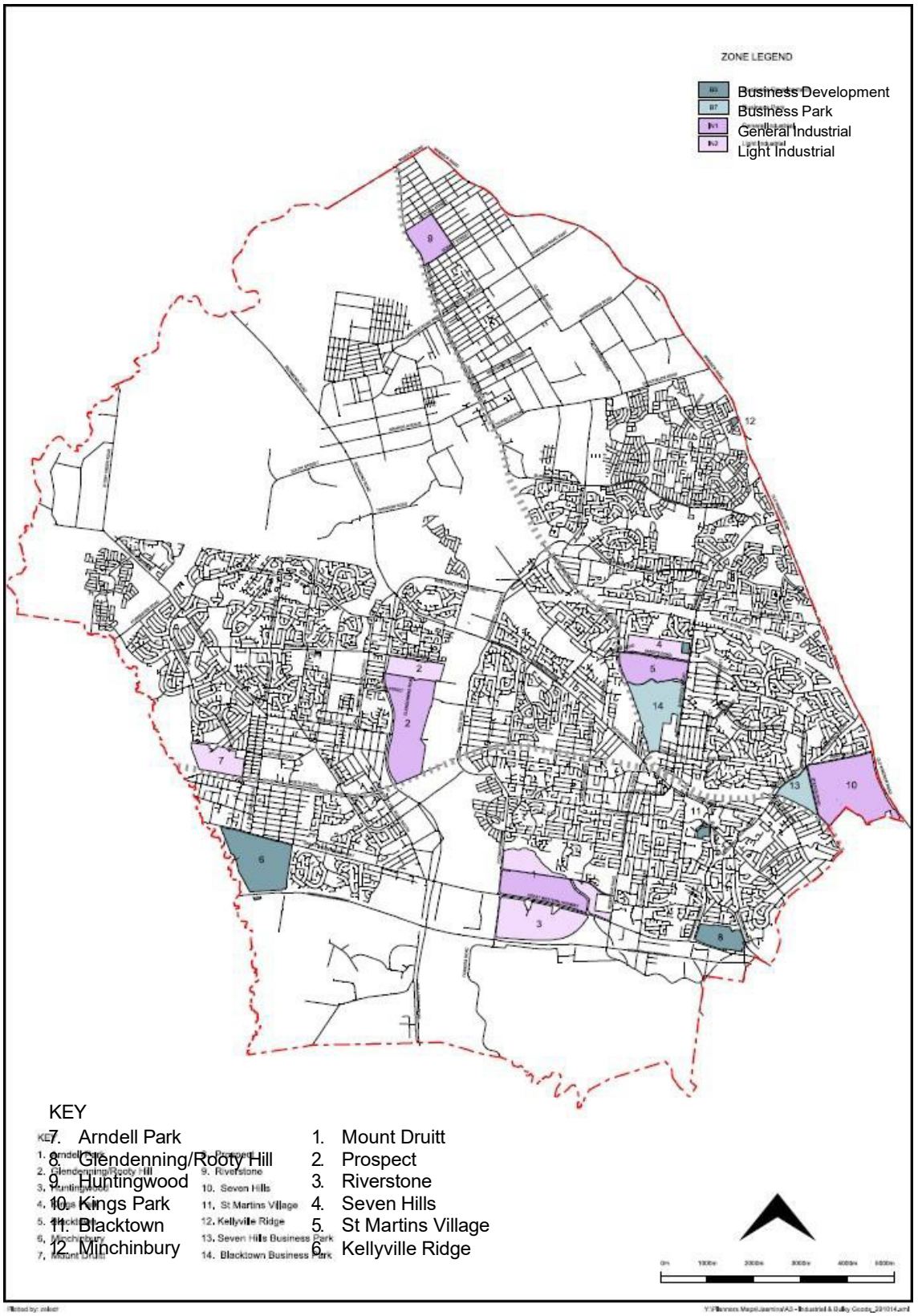


Figure 1.1 Lands zoned B5, B7 or Industrial under BLEP 2015

1.3 The industrial, B5 and B7 zones

Blacktown LEP 2015 contains 2 Industrial zones, being:

(a) IN1 General Industrial

(b) IN2 Light Industrial.

Blacktown LEP 2015 also contains the B5 Business Development and the B7 Business Park zones. The B5 zone is essentially a light industrial zone that also allows bulky goods premises that require a large floor area. The B7 zone is also essentially a light industrial zone that allows office premises with the aim of encouraging high density employment opportunities in appropriate locations.

The Blacktown LEP 2015 zoning maps show the location of the industrial, B5 and B7 zones.

The Land Use Tables at Part 2 of the Blacktown LEP 2015 Written Instrument outline the objectives of each zone and identify the types of land uses that are permitted (with or without Council's consent) and prohibited in each zone.

The Blacktown LEP 2015 Written Instrument also contains clauses that affect how land within the zones can be developed and used.

1.4 Definition of 'light industry'

Blacktown LEP 2015 has adopted the following definition:

Light industry means a building or place used to carry out an industrial activity that does not interfere with the amenity of the neighbourhood by reason of noise, vibration, smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil, or otherwise, and includes any of the following:

(a) High technology industry

(b) Home industry.

Any DA involving a type of light industry must provide sufficient information to demonstrate that the proposed development is in fact a type of light industry.

As a guide, Council considers the following land uses to be 'light industry'.

(a) Appliance assembly and repair

(b) Beverage and food packaging

(c) Cabinet making and furniture assembly

(d) Electronic and computer components (and accessories) assembly and repair

(e) Laboratories not involving the significant storage or use of toxic, volatile, flammable or radioactive materials

(f) Light metal fabrication

(g) Motor vehicle accessory installation

(h) Motor vehicle repair

(i) Plastic extrusion and moulding

(j) Signwriting

(k) Small engine repair

(l) Trade yards (e.g. plumbers or builders storage yards).

Note: A separate light industry list has been developed for the Huntingwood Industrial Estate (refer to Section 5).

Examples of development not considered by Council to be 'light industry' are listed below.

(a) Asbestos cement products manufacture

(b) Bitumen manufacture or processing

(c) Boilermaking

(d) Brick, tile, pipe and fire clay products manufacture

(e) Cement, cement product manufacture and concrete batching works

(f) Chemical factory or works involving chemical processes or involving the use of toxic, radioactive, flammable or otherwise volatile unstable materials

(g) Chemical storage establishments (other than the storage of inert, non-toxic, non-flammable and non-radioactive materials or products)

(h) Cutting, crushing and grinding of rocks, ore or minerals

(i) Drum reconditioning works

(j) Glass, fibreglass and associated products manufacture

(k) Hardboard manufacture

(l) Heavy engineering, boilermaking and heavy machine manufacture

(m) Liquid, chemical, oil or petroleum waste works

(n) Metallurgical works involving the processing of metals or their ores

(o) Motor body building and motor vehicle manufacture

(p) Paper or pulp works

(q) Petroleum products refineries

(r) Hazardous industries

(s) Offensive industries

(t) Rubber (including tyres) or plastics manufacture.

Other uses, such as extractive industries, liquid fuel depots, offensive and hazardous industries and offensive and hazardous storage establishments have not been included in the above list as these uses are prohibited in the IN1 and IN2 zones.

1.5 Change of use

If, in the IN1 General Industrial zone, you propose to change the use of an existing (and legally constructed) building to another industry (but not a type of 'heavy industry', a 'designated development' or a 'prohibited use'), then you do not need to submit a DA to Council. This means that, for example, if Council has given development consent to the use of a factory unit as a motor mower repair workshop, then development consent is not required to change this use to a small electrical appliance repair workshop.

This approach is also applicable within the IN2 Light Industrial, B5 and B7 zones. However, as only light industries are permitted within these zones, the use or occupation of buildings without development consent is limited to light industries (again, other than a type of 'heavy industry', 'designated development' or a 'prohibited use'), except as permitted under the provisions of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

1.6 Factory units

In the case of multi-unit developments, a separate DA may be required for each unit prior to initial occupancy or change of use.

Intending occupiers of factory units are advised to review the provisions of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* or contact Council to find out if a DA is required. Such contact should be made well in advance of the intended date of occupation.

2 Ancillary commercial premises in the industrial, B5 and B7 zones

Blacktown LEP 2015 has adopted the following definition:

Commercial premises means any of the following:

(a) Business premises

(b) Office premises

(c) Retail premises.

The dictionary at the end of Blacktown LEP 2015 provides definitions for each of the above types of commercial premises.

Consent will only be granted for commercial premises within the industrial and B5 zones where it can be demonstrated that such land uses are:

(a) Ancillary to and used in conjunction with a permissible use; or

(b) Intended to serve the daily convenience needs of the workforce of the industrial area and not the general public; or

(c) Large scale retail premises, notably in the B5 zone, such as:

(i) Bulky goods retailing
(ii) Garden centres
(iii) Hardware and building supplies
(iv) Landscaping material supplies
(v) Plant nurseries
(vi) Rural supplies
(vii) Vehicle sales or hire premises.

Ancillary development will be taken to mean development which depends for its existence on other development carried out on the same land (this latter development being described as the dominant use of the land) and which occupies only a small proportion of the total developed area of the land.

2.1 Ancillary retail premises

Ancillary retail premises may be approved within the industrial, B5 and B7 zones. Applicants will need to demonstrate that the proposed retail premises fall into any of the following 3 categories:

(a) Retailing associated with and ancillary to manufacturing development on the same land. This may include retailing activities attached to a factory and selling items such as 'seconds' of goods made or prepared in that factory, but would not include those attached to warehouses

(b) Retail premises serving the daily convenience needs of people working in the industrial area. This includes sandwich shops, cafes, chemists, newsagents and the like, but excludes large scale uses such as supermarkets

(c) Large scale retail premises in the B5 zone (examples listed above).

Clause 5.4 of Blacktown LEP 2015 (Controls relating to miscellaneous permissible uses) places a limit on the floor space for certain types of retail premises with the intention of

protecting Blacktown's established retail hierarchy. To ensure this, the following information will need to be provided with any development application for ancillary business or retail uses:

(a) Scale (floor space, turnover etc)

(b) Location (in relation to business centres)

(c) Types of development (goods to be sold).

Additionally, such uses shall generally not be located within 400m by straight line distance of other existing or approved individual small shops within the industrial, B5 zone, B7 zone or land zoned for B1 Neighbourhood Centre or B2 Local Centre.

3 Subdivision of industrial land

3.1 Minimum subdivision lot size

The size of any allotment resulting from the subdivision of land must be in accordance with Clause 4.1 of Blacktown LEP 2015. This clause should be read in conjunction with the LEP Lot Size Maps.

Land within the Huntingwood Industrial Estate is subject to Clause 4.1A of Blacktown LEP 2015 (Minimum subdivision lot size for strata plan schemes). All such land is identified as 'Area A' on the LEP Lot Size Maps.

3.2 Minimum lot width

In any Torrens title subdivision of industrial land, allotments (other than battle-axe shaped allotments and residues) shall have a minimum width at the building line of 35 metres, except in Huntingwood where the minimum width at the building line shall be 50 metres.

Failure to satisfy these minimum requirements could lead to design difficulties for subsequent development, particularly where development is located on a corner allotment with 2 street frontages.

3.3 Battle-axe shaped allotments

Battle-axe shaped allotments shall comply with the minimum lot width and size areas stipulated above, exclusive of the area taken up by the battle-axe handle.

Battle-axe handles shall have a minimum width of 8m. However, where 2 battle-axe handles adjoin and provide a shared driveway with reciprocal rights-of-way over the other, the minimum width of the shared driveway may be 10m.

3.4 Strata subdivision

Where there is to be a strata plan of subdivision, any space for parking or other purposes forming part of a sole occupancy unit must be included in the same strata lot as the unit.

4 Design guidelines

4.1 Setbacks

The objectives of this section are as follows:

(a) To define the building area within each allotment by specifying minimum setbacks

(b) To provide for landscaping and other beautification works on the site's street frontages by using setbacks exclusively for landscaping works

(c) To ensure that buildings present an acceptable scale and bulk when viewed from the street by varying minimum setbacks as circumstances may dictate.

In all industrial areas within the City of Blacktown no buildings are to be erected on any land within:

(a) 20m of the street alignment of a road zoned SP2 Infrastructure – Classified Road

(b) 10m of the street alignment of a road zoned SP2 Infrastructure – Local Road or an industrial collector road. The industrial collector roads comprise Holbeche Road, Huntingwood Drive, Glendenning Road and Power Street (east of Glendenning Road)

(c) 7.5m of the street alignment of any other road

(d) 15m of an adjoining residential zone or 5m of an adjoining RE1 Public Recreation or SP2 Infrastructure (Educational Establishment) zone, where any of these zones is not separated from an industrial zone by a road (with the exception of the Kings Park Industrial Area as detailed below).

Council may consider allowing car parking within the setback to a SP2 Infrastructure – Classified Road, to within 10m of the street alignment, if the design of the development creates an attractive streetscape. This includes both building appearance and landscaping treatments. Landscape mounding may be required to lessen the visual impact of car parking located within the setback to the Great Western Highway and the M4 Motorway.

In the Kings Park Industrial Area, the following specific building setbacks apply:

(a) 15m from the RE1 Public Recreation zone adjoining the northern boundary of the Kings Park Industrial Area, except that limited parking and storage facilities may be permitted within 6m of the rear walls of buildings located on the lots on the northern side of Binney Road

(b) 30m from the residential zone adjoining the western boundary of the Kings Park Industrial Area.

In the case of corner allotments, the minimum setback required for the secondary frontage shall be 5m on roads zoned SP2 Infrastructure – Classified Road or SP2 Infrastructure – Local Road or on industrial collector roads and 3m on all other roads, provided that the building presents a satisfactory facade to the street with good design and landscaping elements. Blank wall facades will not be satisfactory.

Council may increase the minimum front setback where, in Council's opinion, the proposed development is of a bulk and scale that is out of character with existing development in the estate and where landscaping techniques are not sufficient to ameliorate the visual impact of the proposed building. Variations to the building line standards outlined above may be granted by Council for infill development in existing industrial areas fronting major roads. Each case will be considered on its merits and applicants are advised to discuss any proposal with Council.

Side and rear setbacks may also be required depending on the nature of adjoining development and the circumstances of individual cases. Applicants are encouraged to discuss this matter with Council prior to lodging a DA.

Setback areas to public roads are to be landscaped and maintained as open areas only, so as to enhance the streetscape appearance of all industrial development. No storage of any kind is to occur within landscaped setback areas.

Fencing within the minimum setback area is not encouraged. However, if fencing is required for safety or security reasons any fencing provided must be:

(a) Open-style fencing (e.g. pool fencing)

(b) Fencing which does not obstruct the view of landscaping from the street or a driver's view (from the driveway) of the road.

Where developments front roads zoned SP2 Infrastructure – Classified Road or SP2 Infrastructure – Local Road, fencing shall be provided and shall be a minimum height of 1.2m and constructed so as to prevent vehicular and pedestrian access to or from those roads.

All fencing materials used shall be to Council's satisfaction. Prepainted solid metal fencing is not acceptable to Council.

4.2 Landscaping

Objectives in respect to landscaping in the industrial and B5 zones are as follows:

(a) To encourage a high standard of environmental quality of individual developments, whilst enhancing the general streetscape and amenity of the area by providing high standard landscaping

(b) To minimise loss of vegetation during the land development process by incorporating as many existing trees as possible within landscaped setbacks

(c) To ensure that vegetation removed as part of the land development process is replaced by suitable indigenous species.

Landscaping plans are to be submitted with the DA and should include the following:

(a) North point

(b) Scale

(c) Main structures on the site (buildings, carparks, driveways, walls, fences, paving, storage areas, etc.)

(d) Existing trees to be removed or retained

(e) Proposed planting areas

(f) Proposed turfed areas

(g) Outdoor recreation, seating or play area

(h) Drainage areas

(i) Name and contact telephone number of the person who prepared the plans

(j) Contours and spot levels (existing and proposed)

(k) Details of paving, fencing, wall and edge treatments

(l) Details of seating and other outdoor furniture including bins, bollards and signs

(m) Lighting

(n) Irrigation

(o) Planting schedule including botanical and common names

(p) Sections and/or elevations where necessary to show special features or alterations in levels.

Landscaping is deemed to include both hard and soft works. Hard works include such things as paving, ramp walls, ornamental pools, terracing, sculptures, retaining walls and kerbing. Soft works refer to vegetation (including grass, shrubs and trees) and earthworks.

Landscaping should be integrated with the overall building design and used to:

(a) Highlight architectural features, aesthetic qualities and provide a human scale development

(b) Define and identify areas such as site and building entries and car parking areas

(c) Adjust and ameliorate adverse site conditions by providing shade, reducing reflective glare from hard surfaces, providing wind protection, screening and the like.

Landscaping proposals should generally be in accordance with the following requirements:

(a) Every effort should be made to preserve existing trees and any associated native understorey.

(b) All setback areas are to be landscaped and maintained incorporating as many existing trees as possible. Undeveloped areas are to be stabilised to prevent soil erosion. Landscaping may be required around the perimeter of undeveloped areas.

(c) Car parking areas are to be suitably treated with landscaping to soften the appearance of the areas and to provide shade for parked cars. At a minimum standard one tree should be planted every 10 metres and be at a minimum height of 1m at the time of planting. Trees should be planted to achieve 50% shading of the car park at ten-year maturity. Undeveloped areas are to be stabilised to prevent soil erosion.

(d) All landscaped areas are to be separated from vehicular areas by means of a kerb, dwarf wall or other effective physical barrier, however full fencing of landscaped areas is not encouraged.

(e) Earth mounding (where on-site detention of drainage is not required) may be used within the setback area. Embankments that are not finished with rockeries or walls should not be steeper than 1:4 gradient in order to enable vegetation to be grown and maintained.

(f) All irrigation systems shall be automatic and designed to meet specific site requirements. Minimisation of water consumption should also be a consideration in the design of irrigation systems. Reliance on irrigation systems for the survival of chosen plant species is not encouraged.

All landscaping is to be completed to Council's satisfaction prior to occupation of the development. Details of the works, including proposed plant species, are to be provided in the landscaping plans submitted with the DA.

Landscaping and tree planting play an important role in maintaining biodiversity, creating canopy coverage and providing ecological habitat. Indigenous species should make up a large percentage of the planting mix. Suggested plant communities and species for planting are found in Council's Vegetation Management Plan Guideline booklet.

https://www.blacktown.nsw.gov.au/Plan-build/Stage-2-plans-and-guidelines/Native-vegetation-management

4.3 Consideration of adjoining land

Where development is proposed on major traffic routes or on land near to or adjoining a residential zone, a RE1 Public Recreation zone, or sensitive uses such as schools, Council will have particular regard to the following:

(a) The appearance of the development from through roads and adjoining land. For example, building materials and landscaping which require little maintenance are preferred and screen walls and/or landscaping may be effective in screening industrial development

(b) The appearance of the development from elevated residential areas. For example, the use of non-reflective building materials or the use of materials which blend with the landscape

(c) The likely level of air pollution (both odour and chemical content) to be emitted by the development. Approval may be required from the NSW Office of Environment and Heritage for some development

(d) The likely level of noise to be emitted by the development, particularly its effect on the use of adjoining residential land. In general, noise generated by a development should not exceed the existing background sound pressure level by more than 5dB(A). A statement of compliance with this standard from an acoustic consultant may be required to be submitted with the DA

(e) The potential effect of the development on solar access to adjoining non-industrial land. Council may require the submission of shadow diagrams indicating the effect of shadows between 9am and 3pm on 21 June.

4.4 Development in the IN1 General Industrial zone adjoining residential land

Council seeks to minimise or eliminate land use conflicts between the IN1 zone and surrounding residential neighbourhoods without unnecessarily altering or restricting the development potential of land within the IN1 zone.

When assessing a DA for land in the IN1 zone and located within 250 metres of land zoned for residential purposes, Council must take into consideration the matters listed in Clause 7.8 of Blacktown LEP 2015.

4.5 Building design and construction

To complement landscaping and ensure a high standard of visual and environmental quality, Council encourages high aesthetic standards for building designs.

Attractive building design can, in most cases, be achieved simply and at comparatively low cost and applicants are encouraged to consider variations in fascia treatments, roof lines and selection of building materials to achieve an attractive design.

Applicants must submit with their DA details of the design of the development with the exception of construction details. Construction details will be required to be submitted with a Construction Certificate application to either Council or a private certifier. Applicants may be required to submit detailed descriptions and samples of facing and roof materials for the separate approval of Council.

Building facades to street frontages, with a minimum 3m return, must be constructed of face brick or decorative masonry blocks (not standard concrete blocks) or other building materials to the requirements of Council.

All building construction must comply with the requirements of the *Building Code of Australia*. The following requirements should also be observed:

(a) Internal walls of factory units must be of masonry construction and must be carried to the underside of the roof and sealed to Council's satisfaction

(b) Separate male and female toilets must be provided to each factory unit. Toilets for persons with a disability may be required.

Particular attention is drawn to the fire safety provisions for industrial buildings contained in the *Building Code of Australia*.

All roofing must be provided with adequate gutter and downpipes connected to an approved roofwater drainage system.

4.6 Open storage areas

Where any materials are to be stored outside the buildings on the site, full details of the parts of the site to be used in that way, and of specific materials to be stored, should be provided by the applicant with the DA.

Open storage areas are to be effectively screened and sealed. Such areas are to be located preferably behind buildings. No storage should occur above the height of proposed screening.

In the case of applications which do not include proposed buildings, screen walls or other approved screen devices are to be erected in order to effectively prevent the use of the land being viewed from a public road or any nearby open area or residential zone. Screening devices are to be designed so as to harmonise with any existing or proposed landscaping.

4.7 Vehicular access and circulation

The objectives for this Section are as follows:

(a) To ensure that vehicular circulation is safe and efficient and minimises potential vehicular and pedestrian conflict by encouraging the grouping of like activities

(b) To ensure that adequate areas are set aside to allow for the safe and efficient manoeuvring of vehicles on site by compliance with Austroads Guide to Traffic Management and Austroads Guide to Road Design

(c) To ensure traffic circulation arrangements are compatible with the local road system by implementing appropriate controls on ingress/egress to sites.

Applicants are required to submit plans and details of proposed vehicular access and circulation for Council's approval with the DA. Details must specifically relate to vehicular movement, layout and turning circles.

Adequate vehicular entrance to and exit from the development is to be provided and designed in order to provide safety for pedestrians and vehicles using the site and adjacent roadways. It is preferable that separate ingress and egress be provided to minimise vehicular conflict within development sites. Vehicular ingress and egress to the site must be in a forward direction at all times.

All developments must be designed and operated so that a standard single unit truck as defined by *Austroads Design Vehicles and Turning Path Templates* (Austroads 2013) may complete a 3-point or semi-circular turn on the site without interfering with parked vehicles, buildings, landscaping or outdoor storage and work areas. Large- scale developments shall be designed to accommodate semi-trailers. In general, turning circles will be required to be provided to accommodate the largest type of truck which could reasonably be expected to service the site.

Council will assess the suitability of manoeuvring areas provided for large vehicles by reference to the standard vehicle turning templates *Austroads Design Vehicles and Turning Path Templates* (Austroads 2013).

Turning circles will not be permitted to encroach upon any building.

All internal two-way roadways are to have a minimum width of 7m. Lesser widths may be considered for one-way aisles. All internal roadways, circulation and parking areas are to be sealed with a hard-standing, all-weather material. Direction arrows are to be shown on all internal roadways in order to facilitate the satisfactory movement of vehicles.

Adequate space is to be provided within the site for the loading, unloading and fuelling (if applicable) of vehicles.

Developments are to comply with the requirements of *Austroads Guide to Traffic Management – Part 12: Traffic Impacts on Development* in relation to the number, location and design of vehicular entry and exit points.

All parking areas and access roadways must be provided with a drainage system which includes surface inlet pits. Details of pipe sizes (with capacity calculations) and drainage layouts (including discharge points) must be submitted with the DA.

Direct vehicular access is denied between individual sites and any road zoned SP2 Infrastructure – Classified Road or SP2 Infrastructure – Local Road in Blacktown LEP 2015 except in special circumstances as outlined in Clause 7.9 of Blacktown LEP 2015 (Development with frontage to a road zoned SP2 Infrastructure – Local Road or SP2 Infrastructure – Classified Road).

4.8 Car parking

The objectives for this Section are as follows:

(a) To ensure that adequate provision is made for on-site car parking for employees' and visitors' vehicles

(b) To ensure that car parking areas are attractive through the provision of landscaping

(c) To ensure that traffic circulation arrangements within the site are compatible with the local road system by implementing appropriate controls on ingress/egress to sites

(d) To ensure that opportunities for cycling to work are realised by encouraging the provision of bicycle parking areas and associated facilities within the workplace.

Car parking standards and guidelines are contained in Section 7 of Part A (Introduction and General Guidelines).

Car parking areas, if possible, should be located immediately behind the minimum setback area and in front of any activity on the site. This arrangement encourages the use of off-street car parking, making the development more attractive to visitors and employees. In addition, car parking areas should be accessible to all parts of the industrial development which they serve.

Where a building is intended to be divided into lettable units, parking will be calculated for each unit and the appropriate spaces must be nominated on the DA plan and/or strata plan in respect of each unit.

The use of stack parking is not favoured and will only be permitted in special circumstances.

Parking facilities for commercial vehicles should be designed to accommodate the largest type of truck which could reasonably be expected to park on the site.

Sufficient spaces should be provided for parking for persons with a disability. All developments providing 50 parking spaces or more must provide at least 2% or part thereof of those spaces for disabled drivers, clearly marked and signposted for this purpose and located as close as possible to the building's entrance.

All parking areas shall be constructed of a sealed hard-standing, all-weather material, with parking bays and circulation aisles clearly delineated.

Directional signs for car parking areas, loading docks, delivery areas and the like should

be designed in an attractive manner and should be located at a convenient point close to the main access to a development site. The colouring, type and scale of signage erected within individual properties should also be considered to ensure consistency within the development.

Whilst not negating the need for a landscaped buffer at the primary street frontage of properties, car parking areas should be visible from the road providing access to the site. This encourages the use of off-street car parking by both visitors and employees. In addition, car parking areas should be accessible to all parts of the development which they serve.

Applicants are encouraged to incorporate, in the design of their buildings, safe storage/parking areas for bicycles, with adequate shower and change facilities provided for staff.

Additional guidelines for the design of parking areas can be found within the *Austroads Guide to Traffic Management.*

5 Specific controls for the Huntingwood Industrial Estate

The Huntingwood Industrial Estate is bounded by the Great Western Highway to the north, the M4 Motorway to the south, Brabham Drive to the west and Woods Close to the east, as shown in Figure 5.1 below.

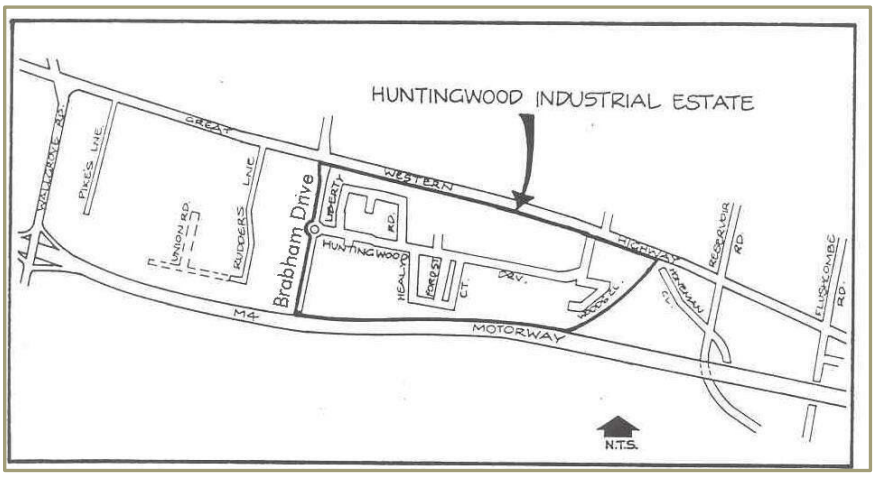


Figure 5.1 Huntingwood Industrial Estate

5.1 Aims

The controls for the Huntingwood Industrial Estate contained in this Part have been developed to:

(a) Encourage modern forms of light industrial, warehousing, manufacturing, research and like development in the estate

(b) Ensure that development is of a high visual and environmental standard and incorporates best practice environmental management techniques

(c) Encourage development that enhances the amenity of the estate by encouraging high quality landscaping, adequate building setbacks and high-quality external finishes

(d) Discourage development that is likely to detract from the amenity of the estate by reason of its appearance, noise, emissions or the nature of proposed the uses.

5.2 Appropriate types of light industry

As a guide, Council considers the following light industrial land uses to be suitable in the Huntingwood Industrial Estate. This list is not intended to be exhaustive.

(a) Advanced technology research and manufacturing industries

(b) Appliance assembly and repair

(c) Beverage and food packaging

(d) Communications industries

(e) Computer programming and development industries

(f) Data storage, research and retrieval

(g) Education and training establishments related to or ancillary to business and industrial activities

(h) Electronic and computer components (and accessories) assembly and repair

(i) Laboratories not involving the significant storage or use of toxic, volatile, flammable or radioactive materials

(j) Plastic extrusion and moulding

(k) Research laboratories.

Examples of development considered by Council to not be suitable in the Huntingwood Industrial Estate are listed below. This list is not intended to be exhaustive.

(a) Bitumen manufacture or processing

(b) Boilermaking

(c) Brick, tile, pipe and fire clay products manufacture

(d) Cabinet making and furniture assembly

(e) Cement, cement product manufacture and concrete batching works

(f) Chemical factories or works involving chemical processes or involving the use of toxic, radioactive or flammable or otherwise volatile unstable materials

(g) Chemical storage establishments (other than the storage of inert, non-toxic, non-flammable and non-radioactive materials or products)

(h) Cutting, crushing and grinding of rocks, ore or minerals

(i) Drum reconditioning works

(j) Extractive industries

(k) Glass, fibreglass and associated products manufacture

(l) Hardboard manufacture

(m) Heavy engineering, boilermaking and heavy machine manufacture

(n) Liquid, chemical, oil or petroleum waste works

(o) Liquid fuel depots

(p) Metallurgical works involving the processing of metals or their ores

(q) Motor body building and motor vehicle manufacture

(r) Motor vehicle accessory installation

(s) Motor vehicle repair involving panel beating or spray painting

(t) Paper or pulp works

(u) Petroleum products refineries

(v) Potentially hazardous industries and/or storage establishments

(w) Potentially offensive industries and/or storage establishments

(x) Rubber (including tyres) or plastics manufacture

(y) Small engine repair

(z) Trade yards (e.g. plumbers or builders storage yards).

5.3 Multi-tenanted industrial development

Council does not support the establishment of multi-tenanted industrial developments within the Huntingwood Industrial Estate.

Multi-tenanted industrial development means a building or buildings in which 2 or more industrial uses are carried out and situated on the same land. This definition does not preclude 2 or more differing industrial processes associated with the same development occurring on a single site. However, Council will not support DAs for factory units or warehouse units in Huntingwood unless the units are of a high visual appearance compatible with existing development in the estate, and unless appropriate end uses for the units are specified in the DA.

In determining what constitutes an 'appropriate' end use for multi-tenanted industrial developments, Council will consider the objectives of the Design Guidelines outlined in Section 5.4 below and the IN2 Light Industrial zone objectives contained in Part 2 of Blacktown LEP 2015.

5.4 Design guidelines

5.4.1 Building design and construction

The objectives of this section are as follows:

(a) To encourage a high standard of building design to complement existing buildings in the estate

(b) To encourage quality and consistency in the treatment of facades, external finishes and the like

(c) To ensure that future development in the estate is compatible with the height, scale, siting and character of existing development in the estate

(d) To ensure that sufficient visual relief is achieved on facades significantly exposed to view from major thoroughfares, subdivisional roads and adjoining sites

(e) To ensure that development addresses the road frontage that provides vehicular access where dual road frontage exists.

In recognition of the nature and quality of existing development in the estate, Council encourages high aesthetic standards for building designs. Attractive building design can, in most cases, be achieved simply and at comparatively low cost and applicants are encouraged to consider variations in fascia treatments, facade treatments, roof lines and selection of building materials to achieve an attractive design. High quality landscaping is also required and is discussed in more detail in Section 4.2.

All applicants are strongly urged to discuss their development proposal and submit preliminary drawings to Council prior to formally lodging a DA.

Applicants must submit with their DA detailed descriptions, coloured elevations and, where considered necessary, samples of fascia, façade and roof materials for approval.

A condition of development consent will refer to the approved schedule of finishes.

Building facades to street frontages, with a minimum 3m return, must be constructed of face brick, decorative masonry blocks (not standard concrete blocks), glass or other building materials to the requirements of Council. Front elevations should be staggered so that a single wall does not account for more than 50% of the overall width of that elevation.

Where long, continuous facades present themselves along a street frontage, care should be taken to provide visual relief along the facade by varying the facade alignment, using varying external finishes (texture and colour), providing glass curtain walls or locating office facilities along the facade. On lengthy facades the ratio of 'hard' finishes (masonry blocks, concrete blocks and bricks) to 'soft' finishes (glass walls, windows) should be considered in order to mitigate the bulk of the building and provide visual relief.

Care should be taken to site roller shutters, loading docks and other building openings where they do not detract from the overall appearance of the building. Where possible, roller shutters and the like should not be located on the principal street frontage.

The Great Western Highway, Brabham Drive and the M4 Motorway are access denied roads that currently define the limits of the Huntingwood Industrial Estate. Properties that face these roads have a dual road frontage, with direct property access provided from roads within the estate. Care should be taken to ensure that sufficiently interesting and varied facades are provided to both road frontages where dual road frontage exists. Blank walls will not be accepted on facades that address access denied roads.

The design of buildings on lots that have dual road frontage should be such that the building addresses the road frontage from which vehicular access is gained.

Particular attention is drawn to the fire safety provisions for industrial buildings contained in the *Building Code of Australia*.

5.4.2 Advertising structures

The objectives here are:

(a) To encourage signage in the estate that is commensurate with the quality of development in the estate

(b) To ensure that signage does not detract from the visual appeal of buildings within the estate by discouraging superfluous and unsuitable signs

(c) To ensure appropriate signage is erected on developments with dual road frontage.

Advertising signage within the estate should be kept to a minimum, should relate only to the use occurring on the respective property and should identify the relevant business name.

Directional signs for car parking areas, loading docks, delivery areas and the like should be designed in an attractive manner and should be located at a convenient point close to the main access to a development site. The colouring, type and scale of signage erected within individual properties should also be considered to ensure consistency within the development.

Many properties have dual road frontage, with high visual exposure to the Great Western Highway, Brabham Drive and the M4 Motorway. Whilst it is understood that developments on land adjacent to these regional roads would seek to take advantage of advertising opportunities to these major roads, Council will not support freestanding signs exposed to passing traffic along these road frontages. Council prefers that signage to the

Great Western Highway, Brabham Drive and the M4 Motorway be limited to fascia signs only identifying the business located on the site.

5.4.3 Drainage

The objectives for this section are as follows:

(a) To provide for the disposal of stormwater from the site in efficient, equitable and environmentally sustainable ways

(b) To encourage the re-use of stormwater drainage for the irrigation of landscaped areas, particularly during establishment periods.

Adequate provision must be made for the collection and disposal of surface and roofwater runoff. All stormwater shall be either reticulated to the street gutter or piped to a suitable location as approved by Council.

Where a site falls away from the fronting street, the Development Application must include documentation establishing a suitable drainage solution including inter- allotment drainage (and proposed easement) through downstream properties, and written permission from downstream property owners where applicable. Section 88K of the *Conveyancing Act 1919* provides suitable mechanisms to negotiate the creation of easements where an amicable arrangement cannot be made. Council will not support the placement of fill on land to channel stormwater drainage back to the street.

5.4.4 Consideration of adjoining land

The objectives for this section are as follows:

(a) To ensure that development has due consideration of adjoining land by encouraging architectural styles, building materials and landscape treatments which do not detract from existing high-quality development within the estate

(b) To ensure that reasonable building separation to adjoining development is achieved so that solar access to adjoining development is not compromised by inappropriately scaled and located development

(c) To ensure that appropriate controls exist so that the impact of polluting discharges (e.g. noise, air and water) on adjoining land are minimised.

Council, in recognition of the investment in the estate by existing occupants, will require that new development in the estate have due regard to the style and quality of existing development. In this regard similar architectural styles, building materials, landscape treatments and the like are encouraged.

Solar access to adjoining development should not be unreasonably compromised by new development. Care should be taken to ensure that overshadowing of landscaping and staff recreation areas does not occur. Particular attention will need to be paid to development on lots in the estate that are around 4,000 square metres in area, to ensure a continuity of development styles and sympathetic relationship to adjoining development. Council will require the submission of shadow diagrams indicating the effect of shadows between 9am and 3pm on 21 June (the winter solstice) where development exceeds 4 metres in height (measured from existing ground level to the highest roof element).

Light industry is the preferred land use in the estate and uses that require substantial measures to reduce or ameliorate their potential environmental effects are discouraged. These principles are objectives of the IN2 Light Industrial zone and should ensure that

proposed land uses do not adversely affect adjoining development by the emission of air, noise or water pollution. In general, noise generated by a development should not exceed the existing background sound pressure level by more than 5dB(A). A statement of compliance with this standard from an experienced acoustic consultant may be required to be submitted with the DA.

5.4.5 Storage areas

The objectives for this section are as follows:

(a) To ensure that visual amenity within the estate is protected by prohibiting open storage areas

(b) To ensure that storage areas are of a high quality and compatible with proposed development on the site.

Open storage areas in the estate will not be permitted. Where any materials are to be stored outside the primary industrial building on the site, the storage areas are to be fully enclosed and are to be constructed of materials similar to the primary industrial building. Where possible, Council encourages the provision of storage areas within the confines of the primary industrial building.

6 Specific controls for the B7 Business Park zone

6.1 Preliminary

6.1.1 Purpose and aims of this section

The purpose of this section is to provide detailed controls to guide the development of land in the Blacktown and Seven Hills Business Park precincts.

The specific aims of this section are:

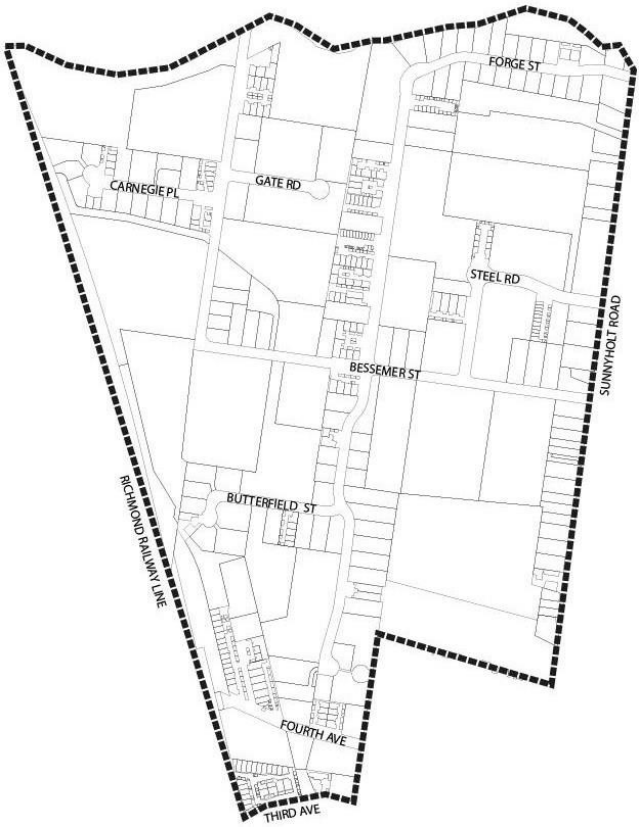
(a) To facilitate the redevelopment of existing industrial areas into vibrant, mixed use business parks

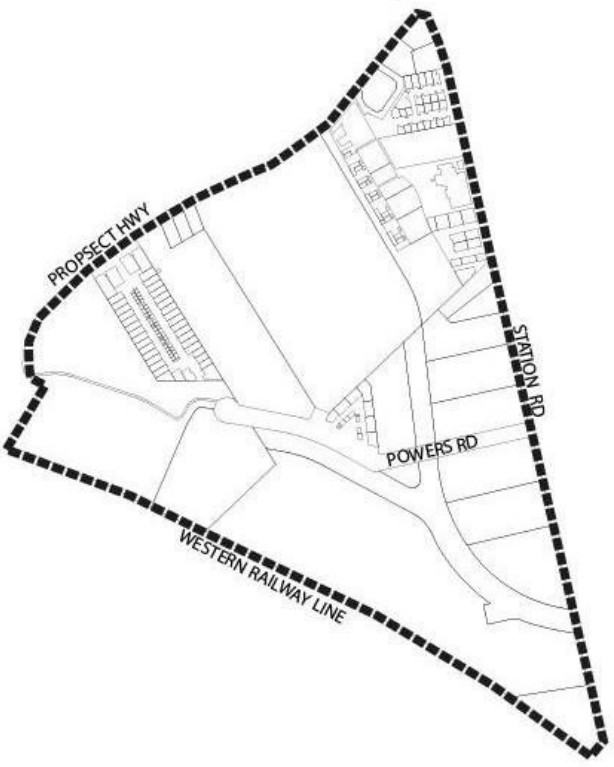
(b) To provide planning and design guidelines that ensure high quality built form outcomes and an improved public domain in a manner that is sustainable and minimises impact on the local community

(c) To set out clear planning, design and environmental criteria against which Council will assess future DAs for all new development.

6.1.2 Land to which this section applies

This section applies to land in the Blacktown City Centre Business Park and the Seven Hills Business Park as shown below.





Blacktown City Centre Business Park **Seven Hills Business Park**

Figure 6.1 Land to which Section 6 applies

6.2 Detailed design guidelines

6.2.1 Subdivision and consolidation

- **Objectives**

(a) Ensure that substantial perimeter planting, landscaping and attractive buildings are located around entrances and visible areas

(b) Allow for a range of allotment sizes

(c) Orientate allotments to ensure buildings appropriately address the public domain.

- **Controls**

(a) Minimum allotment size and dimension

Minimum allotment size	Control
Torrens title subdivision	1,500sq.m
Strata title subdivision or the gross floor area of any unit that forms part of a multi-tenanted building	500sq.m
Minimum allotment width	**Control**
Torrens title subdivision, measured at the building line	35m
Battle-axe allotment, measured at the building line	35m
Battle-axe handle, single access	8m
Battle-axe handle, shared access	10m with additional turning area

Table 6.1 Subdivision requirements

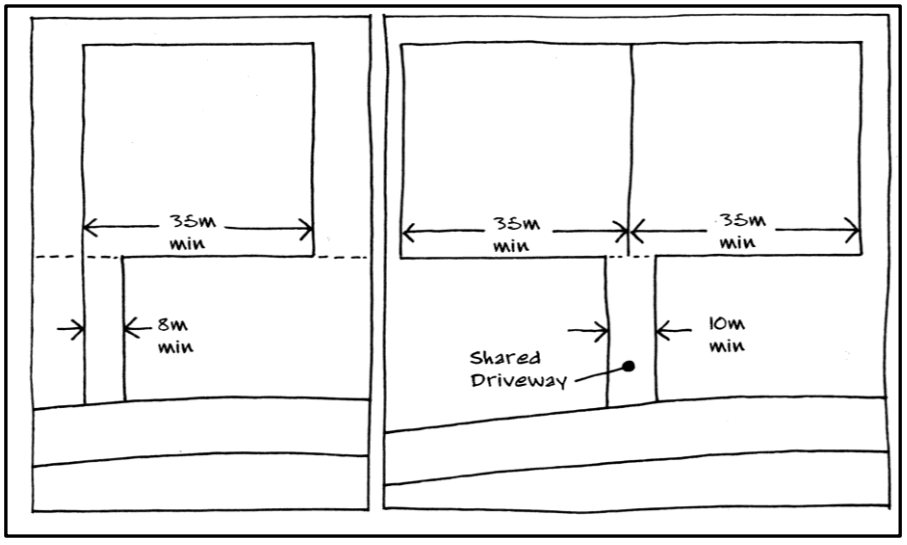


Figure 6.2 Battle-axe lot subdivision

(b) Allotment shape

Lots are to be relatively regular in shape, although lot sizes should also be diverse to meet a range of land uses. These may range from those requiring wide street frontages and a minimum depth to those that require fewer frontages but a greater depth. Irregular shaped allotments with narrow street frontages should be avoided, particularly where several of these are proposed in an adjoining manner.

(c) Allotment orientation

Lots should be orientated and aligned:

- So that future buildings can face the street to increase visual surveillance and to avoid streetscapes with loading docks and long blank walls
- To facilitate solar efficiency
- To encourage building design that has frontage to landscaped areas.

(d) Allotment access

- Access to lots shall be sited to ensure that sight lines are unimpeded when exiting and entering the lot
- Subdivisional roads should incorporate a road hierarchy that will accommodate the anticipated traffic volumes and vehicle types and be practical and legible for users.

(e) Allotment titles

Where a Strata or Community title subdivision is proposed, any space for parking or other purposes forming part of a sole occupancy unit required by Council must be included in the same strata lot as the unit. All landscaping, access areas and directory board signs not forming part of an individual unit will be required by Council to be included in any strata plan of subdivision as common property.

Applicants must demonstrate that, given the built form provisions of this section, the exclusion of an adjacent / adjoining allotment from their site will not adversely affect the development potential of that allotment.

6.2.2 Setbacks, site coverage and floor space ratio

A key element in maintaining visual character is the visibility and appearance of development when viewed from the public domain.

■ **Objectives**

(a) Define building envelopes within each allotment by specifying minimum setbacks

(b) Achieve attractive streetscapes

(c) Use setback areas exclusively for landscaping and other enhancement works

(d) Ensure buildings present an acceptable scale and bulk when viewed from the public domain

(e) Ensure target development is for large floor plate occupancies, especially in the instance of strata titled development, to prevent small floor plate occupancies that could otherwise be accommodated more appropriately in the Blacktown CBD.

- **Controls**

Provision		Control
Setback of property boundary from:		
Arterial and sub-arterial roads		20m
Collector road		10m
Local road		7.5m
Secondary street setback		5m
Side and rear boundary	to building	3m
	to hardstand area	2m
Defined natural form creek or drainage channel		5m
Top edge of retaining wall or top of bank of battered slope		2m
Maximum site coverage (industrial/office uses on the same lot)		65%
Minimum floor space for tenancies		1,500sq.m

Table 6.2 Setback, site coverage and floor space requirements

(a) No building, basin or hardstand area shall be erected within any setback

(b) All setback areas should be landscaped and maintained in accordance with the landscape provisions of this section

(c) Pedestrian access should be provided to all landscaped setback areas for maintenance and security purposes, but is not to be included in the designated landscape setback area

(d) No storage of any kind is permitted within landscaped setback areas

(e) The landscape setback areas should be designed to create attractive views from the public domain and reduce the bulk and scale of development

(f) Council may increase the minimum setback where the proposed development is of a bulk and scale out of character with existing development within the zone, or where the proposed landscape techniques are not sufficient to ameliorate the visual impact of the proposed development.

6.2.3 Building height and design

- **Objectives**

  (a) Encourage creative and innovative building design of a high architectural standard that reflects natural, functional and aesthetic opportunities

  (b) Encourage quality and consistency in the treatment of facades, external finishes and the like

  (c) Ensure that proposed new development is compatible with the height, scale, siting and character of existing development in the zone

  (d) Ensure sufficient visual relief is achieved on facades visible from adjoining sites and the public domain, including major thoroughfares

  (e) Ensure development addresses the primary street frontage.

- **Controls**

  (a) To achieve attractive design, applicants are to consider a variety of building heights and footprints, a range of fascia treatments, facade treatments, rooflines and building materials

  (b) Applicants must consider the following:

  - Integration of building design with landscape elements
  - The impact of building bulk and scale on district views
  - Optimising building orientation and siting to natural elements such as topography, wind and sunlight, and to maximise aspect and views
  - Articulation of building facades by elements such as:
    - External structures, finishes, etchings and recessed patterns
    - Decorative features, textures and colours
    - Locating offices and highlighting entries within front facades
    - Prevention of blank wall building facades.
  - Buildings with dual street frontages should be designed to ensure that:
    - The building addresses the primary street frontage
    - Distinctive identifying architectural elements are incorporated to provide sufficiently interesting and varied facades
    - The amenity of any adjoining landscaped areas is preserved

- The location of roller shutters, loading docks and other building openings do not detract from the overall appearance of the building. Roller shutters and the like should not be located on the primary street frontage
- Visual interest in roof design, natural lighting and compatibility with the overall building design is achieved. Where visible from a public area, all rooftop or exposed structures (lift motor rooms, plant rooms etc), must be suitably screened and integrated with the building

- The location of above ground water tanks to ensure they are not located forward of the front façade of the primary building, are not visible from the public domain and are suitably screened. Details (including elevations) of all water tanks must be submitted with the DA.

6.2.4 External building materials and colours

■ **Objectives**

(a) Enhance the visual quality of the zone through the selection of appropriate materials and colours

(b) Encourage the use of materials that minimises impacts on the environment

(c) Ensure that any reflective materials are used with sensitivity to neighbouring development, vehicular traffic and public domain areas.

■ **Controls**

(a) Applicants are required to submit a materials sample board detailing external colours and finishes with all DAs

(b) External finishes should be constructed of durable, high quality and low maintenance materials

(c) All external walls of buildings used for office/showroom purposes should be constructed of brick, glass, steel, concrete, textured block work, pre-cast exposed aggregate panels or other materials approved by Council

(d) External materials, including masonry, blockwork, galvanized iron, zincalum, timber or fibre cement should be painted or rendered

(e) External finishes should contain a combination of materials

(f) Use of metal cladding:

- The use of metal cladding is discouraged on the walls of a building, unless it can be satisfactorily demonstrated that it forms part of an architectural design solution and is used in association with masonry, glass and other high-quality materials and used on the office component only

- Where a side or rear elevation is visible from the public domain, the use of metal cladding must only comprise 50% of that wall's building material

(g) Any wall visible from the public domain must be finished with a suitable material to enhance the appearance of that façade

(h) Roofs should be either pre-coloured coated masonry tiles or pre-coloured metal

(i) Building materials should be selected such that reflection is minimised and will not adversely affect adjacent development, vehicular traffic and public domain areas

(j) The following should be considered in the choice of building materials in all developments:

- Energy efficiency
- Use of renewable resources
- Low maintenance
- Recycled or recyclable
- Non-polluting
- Minimal PVC content.

6.2.5 Ancillary buildings, storage and service areas

■ **Objective**

Ensure that ancillary buildings, storage and service areas are considered part of the overall design, and do not detract from the amenity and appearance of the development.

■ **Controls**

(a) Storage areas should be located within the confines of the primary building

(b) Open storage areas visible from the public domain are not permissible

(c) Where any materials are to be stored outside the primary building, the storage areas are to be fully enclosed with solid fencing, surrounded by mature vegetation, and located as part of the primary building

(d) Open storage areas should not compromise truck or vehicle manoeuvring and car parking areas

(e) Ancillary buildings and storage sheds are to be located behind the setback lines and be consistent with the design of the main building

(f) Details of any proposed ancillary buildings, open storage and services areas must be submitted with any DA.

6.2.6 Entrance treatment

- **Objectives**

  (a) Create distinctive high-quality gateways to the site

  (b) Create identifiable, attractive and safe entrances to buildings.

- **Controls**

  (a) Entrances to the site should be clearly visible, well signposted, well-lit and landscaped

  (b) Entries to buildings should be clearly visible to pedestrians and motorists and be integrated into the form of the building

  (c) Architectural features are to be provided at ground level, giving an entrance element to any building and addressing the primary street frontage

  (d) All entrance treatments, such as directory boards, must be located on private property, with appropriate positive covenants and restrictions on title to ensure the ongoing management of such treatments

  (e) No form of advertising will be permitted on any entrance treatment facility.

6.2.7 Cut and fill

The image of the precinct will be affected by the extent of cut and fill on large scale development sites.

- **Objectives**

  (a) Ensure that development is capable of visual integration with the surrounding environment

  (b) Ensure that any imported fill material on site is clean and complies with the contamination and salinity provisions of this section

  (c) Ensure that any cut into the site is managed and mitigated from the impacts of salinity

  (d) Ensure that the extent of cut and fill does not encroach within, or adversely affect the efficiency, integrity and stability of, any public domain area.

- **Controls**

Provision	Control
Embankment batters from property boundary	3m:1m (length to height ratio)
Maximum height of retaining wall elements	3m
Terraced fill greater than 3m in height	1.5m:3m (length to height ratio)

Table 6.3 Cut and fill requirements

(a) Embankment batters and retaining walls are to be landscaped to reduce erosion and provide a suitable screen

(b) Appropriate soil erosion and siltation measures are to be implemented on site. Details of the proposed measures are to be provided with the DA

(c) A DA that includes cut and fill on a site adjoining a defined naturally formed creek or drainage channel shall address the potential environmental impacts of the proposed works on those areas.

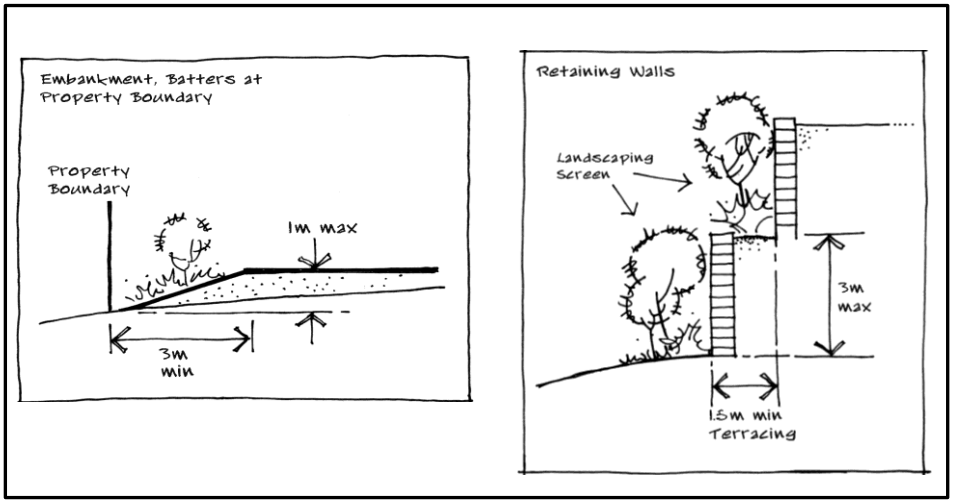


Figure 6.3 Embankment batter and retaining walls

6.2.8 Fencing

Fencing plays a major role in shaping the quality of the public domain and should be appropriately designed and located to promote public safety and amenity by maximising sight lines and casual surveillance.

- **Objective**

  Use fencing to define boundaries and provide security, as well as contribute to streetscape and amenity.

- **Controls**

Provision	Control
Landscaped setback of front fence	1m
Maximum fence height	2.1m

Table 6.4 Fencing requirements

(a) Low feature walls are encouraged at entry driveways. These walls should be used for retaining purposes, as garden beds or as landscaped features and should be integrated into the overall design of the development

(b) Front and side boundary fences forward of the building line shall consist of an open wrought iron palisade style fence, finished in either dark green or black

(c) Side fencing behind the building line may comprise open-style fencing, plastic coated in dark green or black

(d) Pre-painted solid metal fencing and other solid fencing is not permissible.

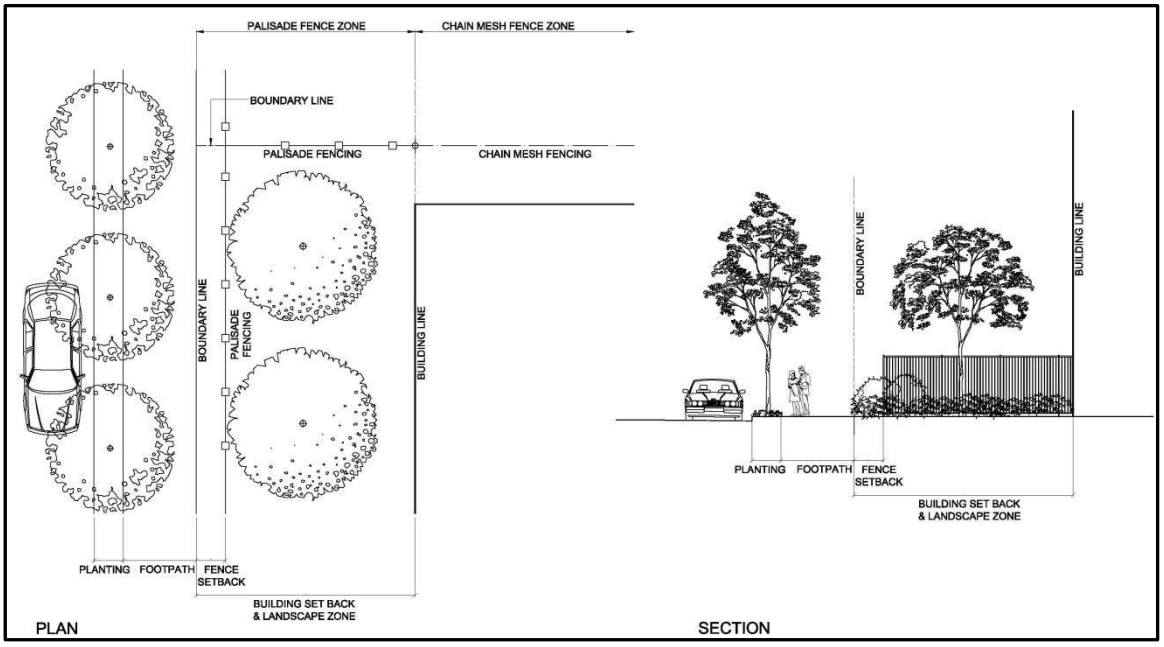


Figure 6.4 Fencing details

6.2.9 Signage and lighting

- **Objective**

  Ensure that signage and lighting support the visual appearance of the building and visual appeal.

- **Controls**

  (a) Signage is to relate to the use occurring on the property and should identify the relevant business name

  (b) Business identification signage should be attached to the wall of the main building and be designed to complement the architectural style of the building. Freestanding signs will only be permitted where signs are integrated with the landscaping and visual character of the site and surrounding area

  (c) Directional signs for car parking areas, loading docks, delivery areas and the like should be located close to the main access of a development site. The design, colouring, type and scale of signage within individual properties should be consistent with signage across the whole precinct

(d) Signage is only to display corporate logos and company names and is not to occupy more than 10% of any facade or wall of a building, unless it can be demonstrated that the characteristics of the site or the building require a larger area of signage

(e) Details of all signage, including freestanding, fascia and wall signs must accompany DAs

(f) The design and lux of any internal or spot lighting shall be designed to avoid off-site or traffic safety impacts

(g) No form of moving or flashing signage or lighting is permitted within the precinct

(h) Signage is not to have a detrimental impact on the visual character of the site or surrounding area.

6.2.10 Safety and security

- **Objectives**

(a) Ensure personal safety for workers and visitors to the development

(b) Ensure that design minimises the opportunity for crime and maximises opportunities for passive surveillance.

- **Controls**

(a) Development which has the potential to present a crime risk will require a Crime Risk Assessment Report (Safer by Design Evaluation) to be submitted with the DA. The report should address the 4 crime prevention through environmental design principles of surveillance, access control, territorial reinforcement and space management

(b) Buildings should be designed to overlook public domain areas and provide casual surveillance

(c) Building entrances should be orientated towards the street to ensure visibility between entrances, foyers, car parking areas and the street

(d) Appropriate lighting should be provided to all cycle and pedestrian paths, bus stops, carparks and buildings

(e) Development should provide clear sight lines and well-lit routes between buildings and the street, and along pedestrian and cycle networks within the public domain

(f) Consideration should be given to the use of landscape elements so as to not compromise the perceived level of safety.

6.3 Landscaping guidelines

Landscaping should reflect environmentally sustainable design principles that minimise the use of non-renewable resources (in particular water) and maximise recycling. Landscaping should integrate with building design to ameliorate the impact of climate conditions on buildings, amenity and comfort.

- **Objectives**

  (a) Encourage a high standard of landscaping to enhance the streetscape and amenity of the precinct

  (b) Enhance the appearance, amenity, energy and water efficiency of development through integrated landscape design

  (c) Ensure that the public domain and outdoor staff areas are landscaped

  (d) Ensure an integrated design solution through allotment planning taking into consideration the provision of deep soils, shade/solar access and drainage.

- **Controls**

  Design and planning

  (a) A landscape plan is to be prepared and submitted with all DAs. Information to be included on the landscape plan should include:

  - North point
  - Scale
  - Contours and spot levels
  - Main structures on the site (buildings, car parking, driveways and service areas, walls, fences, paved areas, storage areas etc)
  - Drainage structure and above ground water storage tanks
  - Existing trees to be removed or retained
  - Proposed planting areas
  - Proposed turfed areas
  - Plant species schedule including botanical and common names
  - Details of seating and other outdoor furniture including bins, bollards and signs
  - Details of paving, fencing, wall and edge treatments
  - Lighting
  - Irrigation systems and water requirements
  - Sections and/or elevations where necessary to describe special features or alterations in levels
  - Name and contact details of the landscape architect

  (b) Site landscaping is to comprise trees, shrubs and groundcovers.

Streetscape and allotment frontages

(a) The streetscape design is to integrate vertical elements (trees, light poles and allotment signage) to provide consistency of elements and materials across the zone

(b) Service lids and above ground structures are to be minimised in street frontages. Where possible, service lids are to be located adjoining pavement or kerbs to avoid small areas of turf or planting beds

(c) Street tree planting should be implemented at the subdivision stage to ensure plantings are visually consistent in height, spread and form across the zone

(d) A mass planted and mulched zone is to adjoin pedestrian and/or cycleways. The zone is to extend from the road carriageway into the building setbacks and is to be planted with a consistent theme of low groundcovers and mature vegetation. The mass planted zone is to be evenly graded towards the adjoining path at a maximum grade of 10m in length to 1m in height

.



Figure 6.5 Indicative streetscape landscape treatment

Allotment landscaping

(a) Allotment landscaping is to be undertaken as part of an integrated design with site planning and building design to:

- Reduce the scale of built form from the street
- Provide tree species with a canopy equivalent or larger than the height of the building at building corners and along facades, to reduce the visual impact and extent of continuous building façades
- Highlight architectural features and complement façade articulation
- Identify site and building entries, carpark entries and parking areas, in coordination with signage
- Mitigate adverse site conditions through buffering of western sun, provision of shade, wind protection and screening of poor views
- Maximise northern sun exposure

  Integrate usable and attractive external seating and amenity areas for staff, incorporating paved areas, soft landscape and shade planting (and canopies where necessary)

(b) The allotment landscape should incorporate hard and soft landscape elements in pavements, retaining walls, low walls and terracing, trees, garden bed planting, turfed areas and irrigation

(c) Tree plantings should be a minimum height of 1m at the time of planting. Mass plantings may use a variety of sizes including viro tubes

(d) The allotment landscape is to be provided with an automatic trickle irrigation system installed below mulch level. The system is to be supplied by the rainwater tanks on site

(e) Irrigation systems are to incorporate soil moisture monitoring where possible to ensure that moisture levels are maintained at an appropriate level

(f) Landscaped areas are to be separated from vehicular access areas by an appropriate edge, preferably a raised kerb

(g) Landscaped areas are to be separated from storage areas by an appropriate edge, preferably low walls. Signage and management strategies are to be put in place to ensure that storage activities do not impact on, and extend into, landscaped areas. No storage is allowed in landscaped setback areas.

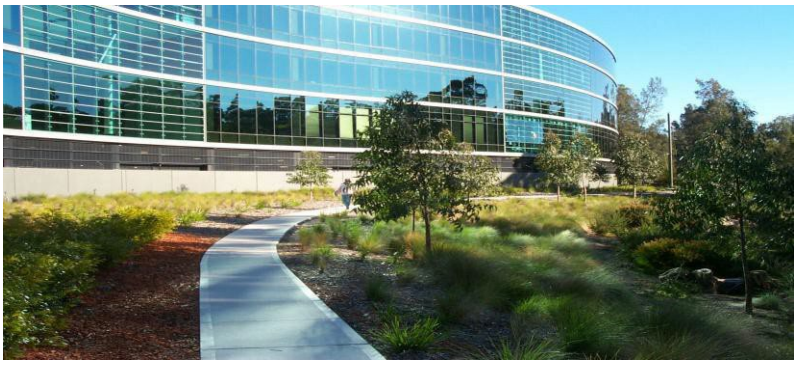


Figure 6.6 Indicative allotment landscape treatment

Car parking areas

Provision	Control
Large canopy tree plantings	Maximum intervals of 25m (9 parking bays)
Tree plantings	Minimum 2m bay of deep soil condition (minimum 1m)
Car parking bays	Raised kerb barrier (rounded adjoining accessways) and native groundcover planting

Table 6.5 Carpark landscaping requirements

(a) Allotment car parking areas are to be effectively landscaped to:

- Reduce their visual impact
- Reduce heat generation and glare from hard paved surfaces
- Provide shade for parked vehicles
- Maximise potential for soft drainage (non-piped) to soft landscaped areas or collection zones

(b) Carpark lighting design is to be coordinated with the preferred tree layout

(c) Dividing zones between parking bays should be landscaped as applicable to specific site conditions:

- Where pedestrian access will generate desire lines across the dividing zone, pedestrian trafficable wearing surface is required (e.g. stabilised gravel)
- Where pedestrian access is not required and some infiltration drainage may be provided, mass planted landscape areas (requiring flush kerb edge and wheel stops to car parking bays) must be provided
- Where a major drainage role is envisaged and pedestrian access is not required, a gravel surfaced trench with collection pipework draining to on-site storage or stormwater must be provided

(d) Clearly defined and appropriately surfaced pedestrian access links from parking areas to building entry points must be provided, incorporating kerb crossing ramps as required

(e) Carpark landscaping is to be provided with an automatic trickle irrigation system installed below mulch level. Irrigation services provision must be implemented before carpark surfacing. The system is to be supplied by the rainwater tanks on site

(f) Irrigation systems are to incorporate soil moisture monitoring where possible to ensure that moisture levels are maintained at an appropriate level.

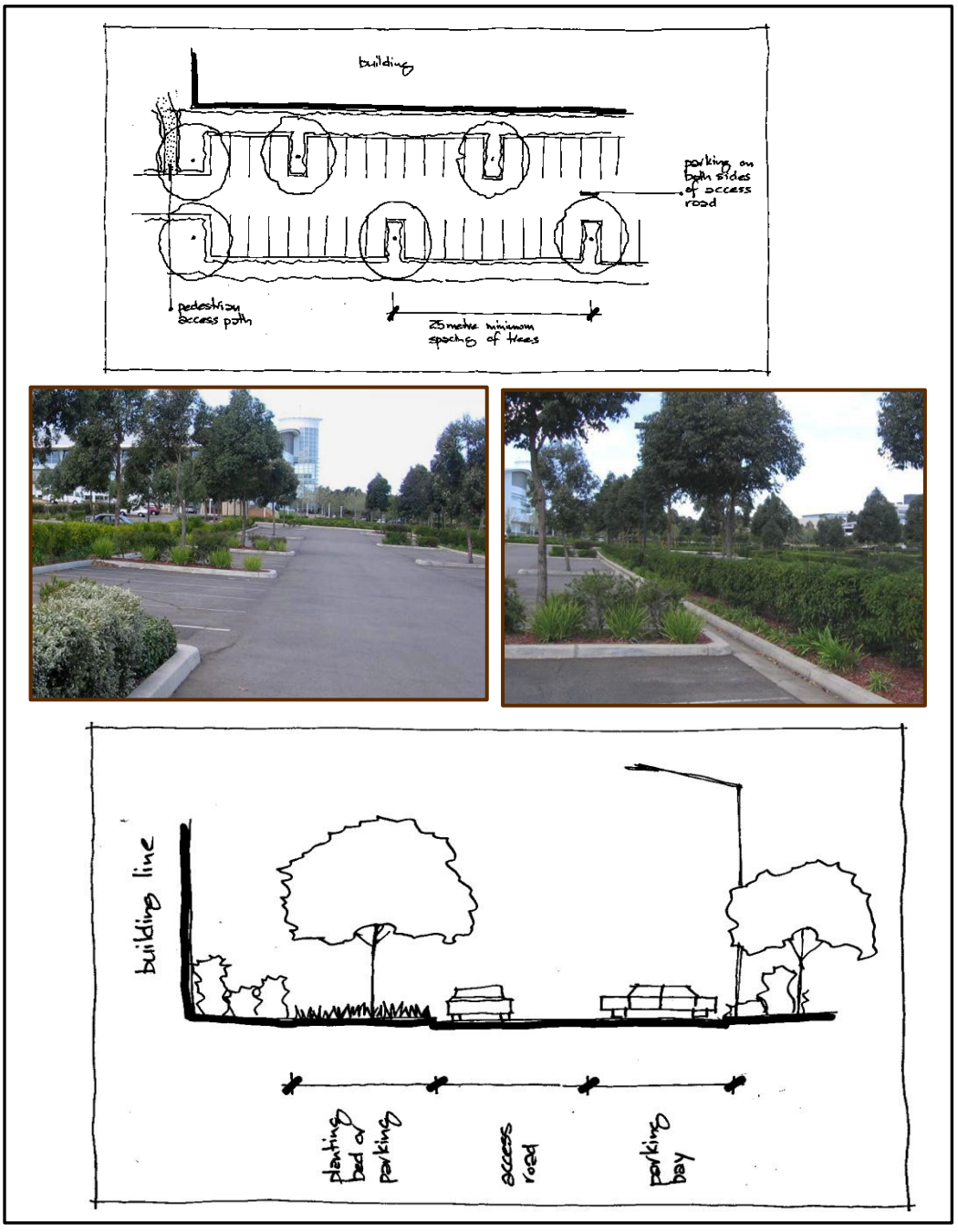


Figure 6.7 Indicative carpark landscape treatment

7 General

7.1 Services

Development consent will not be granted unless Council is satisfied that all utility services that are required for the proposed development are made available in accordance with Clause 7.5 of Blacktown LEP 2015.

7.1.1 Water and sewerage

Any development consent granted by Council will impose conditions requiring evidence that arrangements satisfactory to Sydney Water have been made by the applicant for the required water and sewerage services to the development.

7.1.2 Electricity and telephone

Applicants are required to make satisfactory arrangements with relevant service providers.

7.1.3 Gas

Applicants are advised that the City of Blacktown is serviced by an extensive natural gas system. Council may require applicants to contact the relevant supplier with a view to connection of gas supply to the development as a condition of development consent.

7.2 Pollution control

7.2.1 Air pollution

The emission of air impurities, as defined under the *Protection of the Environment Operations Act 1997*, is to be controlled to the satisfaction of Council at all times. Approval may be required from the Office of Environment and Heritage for some development.

7.2.2 Water pollution

If the premises are subject to licensing under the *Protection of the Environment Operations Act 1997*, any conditions of such a license will form part of any building approval. Developments producing large quantities of contaminated waste water may be restricted to sewered sites.

7.2.3 Noise pollution

Any machinery or activity considered to create a noise nuisance must be adequately soundproofed in accordance with the provisions of the *Protection of the Environment Operations Act 1997*.

The Environment Protection Authority may require certain premises to be licensed under the *Protection of the Environment Operations Act 1997*.

The use of mechanical plant and equipment may be restricted where sites are located near a residential area. Developments located near residential areas should be designed so that the development does not cause a noise nuisance.

7.3 Areas requiring fill

A series of maps adopted by Council and displayed on Council's website identify areas requiring significant filling before development may proceed. In addition, land which is used or has been used for a dam will need special consideration. For these areas Council will impose conditions of development consent regarding type of fill and compaction of soil.

8 Sex services premises in industrial zones

8.1 Background

Sex services premises means a brothel, but does not include home occupation (sex services).

Amendments to the *Disorderly Houses Act 1943* came into force on 8 December 1995. They had the effect of decriminalising prostitution and transferring responsibility for the control of sex services premises from the NSW Police Department (as a criminal matter) to local government (as the location and control of sex services premises became a planning regulatory function).

The legislation passed by the State Government prevents Council from completely prohibiting sex services premises within its local government area. As a consequence, Council has introduced planning controls which are designed to ensure that sex services premises are not operated in inappropriate locations so that they do not give offence to the community or result in a loss of amenity or create adverse social and environmental impacts.

8.2 Aims of this section

The principal aim of this section is to reinforce the need for distance separation between sex services and other incompatible land uses, and nominate relevant criteria that Council must have regard for in determining development applications for sex services premises.

8.3 Location of sex services premises

Under Blacktown LEP 2015 sex services premises are only permitted with consent in the industrial zones. Industrial areas are considered to be the least harmful places to locate sex services premises as they are relatively isolated from incompatible land uses such as residential neighbourhoods, schools, churches, community uses and shopping centres.

8.4 Lodging a Development Application

Landowners and developers seeking to lodge a DA for a sex services premises are encouraged to discuss their proposal with Council prior to lodgment.

When lodging a DA for a sex services premises the following information is to be provided:

(a) Completed DA form and DA fee

(b) 4 copies of properly dimensioned drawings at a scale of 1:50 and/or 1:100 including plans and elevations, clearly indicating the internal layout and proposed use of each room in the premises, location of windows and entrances to and exits from the property, and any external works (if proposed)

(c) A plan of any proposed external signage including details of colours. Details of existing and proposed external lighting must also be shown

(d) Details of the proposed use indicating the:

  (i) Number of operators and other employees

(ii) Hours of operation
(iii) Number of rooms in the premises used for the service
(iv) Name of the operator of the proposed sex services premises
(v) Security measures to be utilised

(e) Details of the site and surroundings including:

(i) Plans showing distance from, and any views to nearby churches, hospitals, community facilities, schools, shops, parks and recreational / cultural facilities used by children

(ii) Distance from any residential zone or from properties used or partly used for residential purposes.

8.5 Specific requirements

8.5.1 Location

Under Blacktown LEP 2015 sex services premises are only permitted with consent in the IN1 General Industrial and IN2 Light Industrial zones.

In addition, sex services premises are limited in terms of where they may locate in accordance with Clause 7.13 of Blacktown LEP 2015 and may not locate:

(a) Within a straight-line distance of 300 metres of land zoned for residential, business, or recreational purposes

(b) Within a straight-line distance of 200 metres of an educational establishment or child care centre

(c) Within a straight-line distance of 200 metres of a sex services premises approved by the Council

(d) Adjacent to any property used or partly used for residential purposes

(e) Near or within view from any place of public worship, hospital, community facility or recreation area or any place regularly frequented by children

(f) Within 100 metres from a road zoned SP2 Infrastructure (Classified Road).

8.5.2 Access

Access to a sex services premises is to be discreet. Where a sex services premises is part of a larger complex, the sex services premises must have a separate entrance to the main entrance, to prevent staff and clients causing a disturbance to other premises in the complex.

8.5.3 Car parking

Parking standards and guidelines are contained in Blacktown DCP 2015, Part A (Introduction and General Guidelines). Parking areas must be located, designed and lit to maximise safety of workers and clients.

8.5.4 Security measures

The operator is to contract a security firm to conduct regular patrols of the site and its surrounds between the hours of 5.00 p.m. and one hour after closing to ensure acceptable behaviour of patrons at and leaving the premises and to restrict possible theft and vandalism within the immediately surrounding industrial area. The firm is also to be on call to deal with any incidents which may occur at or around the site.

Written evidence of these arrangements is to be provided to Council prior to the satisfaction of any deferred commencement consent conditions.

This arrangement will be reviewed by Council in the light of performance over any initial period of the consent. Council shall have the right to require a variation in the security arrangements as a result of this review.

8.5.5 Measures to mitigate the impact of any proposed external advertising

Signs will be regulated pursuant to Council's Local Approvals Policy. Flashing signs or lights, or signs which include colours or designs which may distract passing motorists, will not be permitted. Signs must not include offensive or suggestive material. Signs shall only be illuminated if it will not cause nuisance to any adjoining properties nor interfere with the amenity of the neighbourhood.

Only one sign will be permitted per premises, indicating the name of the operator, the name of the premises and that entry is prohibited to underage persons.

It should be noted that it is illegal under the *Summary Offences Act 1988* to advertise prostitution services.

8.5.6 Measures to contain potential noise and other disturbances created by vehicular and pedestrian traffic

Emission of sound from the premises shall be controlled at all times to the satisfaction of Council. Particular regard must be had to noise associated with patrons leaving the premises.

Consideration will be given to the impact of sex services premises given activities with similar operating hours in the area. This would include massage parlours, adult bookshops and other restricted premises, licenced premises, pubs / hotels, nightclubs and other like uses.

8.6 Consents and matters for consideration by Council

In determining an application to carry out development for the purpose of a sex services premises, Council will consider the following:

(a) The potential cumulative impact of like uses in a neighbourhood

(b) Whether the operation of the sex services premises is likely to cause disturbance in the neighbourhood when considering other sex services premises operating in the neighbourhood or other land uses within the neighbourhood involving similar hours of operation

(c) Whether the sex services premises is not in keeping with or is likely to substantially alter the character of its locality

(d) Whether the sex services premises is likely to put at risk members of the community or its clientele or service providers.

All development consents granted to sex services premises applications shall be initially limited to a period of 12 months, with the majority of approvals issued as deferred commencement consents pending the submission of evidence regarding satisfactory security measures. At the completion of this period, Council will re- evaluate the proposal in terms of any complaints received regarding the approved operations and compliance with conditions of the development consent.

If Council is satisfied that the sex services premises has operated in an orderly manner and with limited impact upon surrounding and nearby land uses, it shall, upon the submission of a request for an extension to the consent prior to the 12-month expiration date, grant a development consent.

Council may also impose conditions of consent relating to the hours of operation. This will also be the subject of review after 12 months. If, after the 12-month trial, the approved hours of operation are causing a disturbance in the neighbourhood, then Council may further restrict operating hours.

Where consent is granted, a specified operator will be nominated on the consent. Should the operator change, Council must be notified prior to the new operator commencing. This will be required as a condition of consent.

If the number of sex workers or hours of operation are proposed to be changed, the approval of Council is to be obtained beforehand, either by way of an application to amend the existing Consent or the submission of a new Development Application.

8.6.1 Role of other agencies

Council will regulate sex services premises with the co-operation of the NSW Police Service and the NSW Ministry of Health. The responsibilities of these agencies are set out as follows:

- **NSW Police Service**

  All applications for sex services premises will be referred for comment to the NSW Police Service Local Area Command prior to determination. Once a sex services premises has been approved, the Police will be responsible for any investigation into alleged criminal activity. This includes drug related activities, violent crime or underage prostitution.

- **Public health**

  The NSW Ministry of Health will be responsible for the maintenance of public health. This includes investigation of complaints relating to public health matters, specifically sexually transmitted diseases and contagious diseases.

- **Other relevant authorities**

  Where Council considers it relevant and/or necessary, applications may also be referred to other authorities or organisations, for example the Sex Workers Outreach Project.

8.6.2 Applications to close sex services premises

A sex services premises closure order can be made by Council to stop the use of a site as a sex services premises under Section 121 of the *Environmental Planning and Assessment Act 1979.*

Section 121 specifies the grounds under which such applications may be made. Section 121 operates in addition to the existing powers of Council to serve notice upon the premises operating without consent, or outside existing conditions of development consent.